

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Justice Muhammad Ali Mazhar
Justice Musarrat Hilali

Civil Petition for Leave to Appeal No.1789/2023

[Against the judgment dated 17.01.2023 passed by the Punjab Service Tribunal, Lahore in Service Appeal No.4644/2022]

Naheeda Aziz

...Petitioner

Versus

Chief Secretary, Government of the
Punjab, Lahore and another

...Respondent(s)

For the Petitioner(s) : Mian Bilal Bashir, ASC

For the Respondent(s) : Mr. Khalid Masood Ghani,
Additional Advocate-General, Punjab
Mr. Zafar Manzoor, AD

Date of Hearing : 12th of February, 2026

Judgment

Muhammad Ali Mazhar, J. This Civil Petition for leave to appeal is brought to challenge the judgment dated 17.01.2023, passed by the learned Punjab Service Tribunal (**PST**) in Service Appeal No.4644/2022

2. According to the narrative of the petitioner, she was appointed as Assistant (BPS-14) in the Board of Revenue and was posted at Lahore. Her husband is also serving in the Revenue Department and posted at Faisalabad as Clerk (BPS-11). Keeping in mind the wedlock policy, the petitioner applied to the competent authority for her transfer from Lahore

to Faisalabad which was denied. She also approached the PST but her appeal was dismissed vide impugned judgment.

3. The learned counsel for the petitioner pointed out a Notification dated 15.06.1988 issued by the Services, General Administration & Information Department in exercise of powers conferred under section 23 of the Punjab Civil Servants Act, 1974 in which mindful to the psychological and economical strains for the concerned families, the wedlock policy was structured which was conducive to the required standards of efficiency and concentration. The learned counsel further contended that in view of this clear directive issued by the Chief Minister, Punjab there was no justification to deny implementation of this wedlock policy. He also cited the case of Zeena Ahmed versus Federation of Pakistan (2014 P L C (C.S.) 1032) and Mubashir Iqbal Zafar v. Ministry of Defences (2025 SCP 455)

4. The learned Additional Advocate General argued that the learned PST rightly considered Rule 11 of the Punjab Civil Servants (A&CS) Rules, 1974 whereby appointment by transfer may be made if transfer is prescribed in the relevant service rules as a method of appointment to such post. According to him, under the Punjab Revenue Department (District Cadre) Ministerial Service Rules, 2011, the transfer of the petitioner was not possible being a separate unit. It was further contended that the transfer under wedlock policy has no overriding effect over service rules. However, he concluded that the matter may be referred to the competent authority once again for revisiting the earlier decision.

5. Heard the arguments. In the case of Mrs. Zeena Ahmed (supra), one of us (Muhammad Ali Mazhar-J) already dilated upon the issue of wedlock policy per extensum and also

discussed different Office Memorandums (**OMs**) or instructions contained in Establishment Code (Estacode). In point of fact, the policy mitigates and alleviates the socio economic problems and hardships faced by husbands and wives in Government service due to posting at different stations of the duty. It does not only facilitate posting of husbands and wives at the same station but the posting of unmarried female civil servants at the place of residence of their parents/families. The judgment also quoted Article 35 of the Constitution of Islamic Republic of Pakistan 1973 (**Constitution**) in which as principle of policy it is provided that the State shall protect the marriage, the family, the mother and the child and according to us, the wedlock policy explicated or is itinerant around this principle of policy which is intended to ensure the benefit of a family. Unless there are insurmountable hurdles, requests of the husband and the wife to be posted at one station are not only required to be considered with an element of compassion and kindness but also to put into effect the policy for judicious implementation.

6. Let us draw attention to the salient characteristics/gist of certain OMs/Circulars/Rule/SOP, issued by the Federal Government and Government of Punjab over and over again bearing in mind the socio-economic problems and hardships faced by husbands and wives in Government service due to posting at different stations of duty and prescribed the guidelines for effective and meaningful implementation of Wedlock Policy across the board:

I. Federal Government Wedlock Policy

1. Posting of serving Husband/Wife at the same Station

The Government of Pakistan Cabinet Secretariat, Establishment Division, vide Office Memorandum No.10/30/97-R.II, dated 13th May, 1998, being mindful to the socio-economic problems and hardships faced by husbands and wives in Government service due to posting at different stations of duty, prescribed the guidelines to

facilitate posting of husband and wife at the same station. Where a request is made for posting at a different station in the same department/service/cadre in which an employee is already serving, the request may be accepted subject to availability of a post in the same BPS; if request involves temporary deputation to another department, it may be accepted on the prescribed terms of deputation subject to availability of a post; when a request is made for permanent transfer/absorption in another department, the request may be processed subject to the condition that seniority shall be determined in accordance with Rule 4 of the Civil Servants (Seniority) Rules, 1993; if there is a tie between two or more Government servants for posting at the same station in the same department/unit of an organization, the Government servant with greater length of service may be preferred; request for posting by a spouse facing serious medical problems may be accorded highest priority; spouses already posted at one station, including those posted on deputation beyond the prescribed maximum period, may normally not be disturbed without compelling reasons of public interest.

The guidelines further expound that posting of husband and wife at the same station should not be made by dislocation of any Government servant already serving at a particular station unless his transfer is necessitated by compelling reasons of public interest or within the frame work of general policy of postings and transfers; the prescribed selection authority should be consulted in each case. All Government servants whose spouses are in Government service may be asked to furnish at the end of every calendar year the particulars of their spouses to their controlling Ministries/Divisions so as to facilitate maintenance of ICP Charts and up to date monitoring of the situation.

2. Posting of Unmarried Female Government Servants at the Place of Residence of Parents /Family.

The Office Memorandum Government of Pakistan Cabinet Secretariat Establishment Division No.10/30/97-R-2, Islamabad dated 17th December, 1999, accentuates that unmarried female Government servants face socio-economic and security problems when they are posted at stations other than the place of residence of their parents/family. The Government has taken note of this difficulty and it has been decided to prescribe the following guidelines for dealing with requests of unmarried female Government servants for posting at the place of residence of their parents/family. Where a request is made for posting at a different station in the same department/service/cadre in which an employee is already serving, the request may be accepted subject to availability of a post in the same BPS. If a request involves temporary deputation to another department, it may be processed in consultation with the concerned department, and may be accepted on the prescribed terms of deputation subject to availability of a post in the same BPS. When a request is made for permanent transfer/absorption in another department, the request may be processed in consultation with the department concerned, subject to the condition that in the event of permanent transfer, seniority shall be determined in accordance with Rule 4 of the Civil Servants (Seniority) Rules, 1993. If there is a tie between two or more Government servants for posting at the same station in the same department/unit of an organization, the Government servant with greater length of service may be preferred. Request for posting by an unmarried female Government servant facing serious medical problems may be accorded highest priority. Unmarried female Government servants already posted at a station, including those posted on deputation beyond the prescribed maximum period, may normally not be disturbed without compelling reasons of public interest. Requests for extension of deputation period

beyond the permissible limit may be considered with compassion if interests of public service would permit. The above guide-lines are made subject to the following conditions that posting of unmarried female Government servants at the station of residence of their parents/family should not be made by dislocation of any Government servant already serving at a particular station unless his transfer is necessitated by compelling reasons of public interest or within the frame work of general policy of postings and transfer.

The prescribed selection authority should be consulted in each case. It has also been decided that the above guidelines shall also be followed by Autonomous/Semi-Autonomous Bodies/Corporations etc. under the control of the Federal Government.

3. Posting of married female Government Servants at place of residence/posting of their husbands who are not in government employment.

Office Memorandum No.10/30/97-R-2, dated 21.4.2006. The undersigned is directed to state that keeping in view the socio economic problems and hardships faced by husbands and wives in Government service due to posting at different stations of duty, the Establishment Division issued instructions/guidelines vide its OM No. 10/30/97-R-2, dated 13.5.1998 and 17.12.1999 to facilitate posting of husbands and wives at the same station and the posting of unmarried female civil servants at the place of residence or their parents/families. With a view to facilitate those female government servants whose spouses are not in government service or employed in the private sector or unemployed. It has been decided to extend the facility to this class of government servants also, to be able to serve at the place of residence of their spouses, irrespective of whether such spouses are employed with the Government, private Sector or even unemployed.

4. Rule 20-A of Civil Servants (Appointment, Promotion & Transfer) Rules 1973.

20A. Appointment on deputation. (1) A person in the service of a Provincial Government or an autonomous, semi-autonomous body or corporation or any other organization set-up, established owned, managed or controlled by the Federal Government who possesses the minimum educational qualifications, experience or comparable length of service prescribed for a post shall be eligible for appointment to the said post on deputation for a period of two years on such terms and conditions as may be sanctioned by the appointing authority in consultation with the lending Organization.

(2) Subject to any rule or orders on the subject a civil servant who fulfils the conditions and is considered suit-able may be sent on deputation to an autonomous, semi-autonomous body or corporation established by law or to the Provincial Government on such terms and conditions as may be decided by the lending and borrowing organizations.

(3) In case of appointment under sub-rule (1) or sub-rule (2) pension contribution shall invariably be made by the borrowing organizations.

Provided that posting of serving husband and wife at the same station, unmarried female government servants at the place of residence of their parents/family and that of married female government servants at the place of residence/posting of their husbands who are not in government employment shall be exempted from the said rule.

5. Standard Operating Procedure (SOP) for Disposal of Cases of Deputation under Wedlock Policy.

Government of Pakistan Cabinet Secretariat Establishment Division No. 10/30/97-R-II Islamabad, the 28th January, 2020. The undersigned is directed to refer to National Assembly Secretariat's Office Memorandum No.1(1)/2019-Corn-I(Vol-V) dated 06.12.2019 on the subject conveying the recommendations of the Standing Committee on Cabinet Secretariat to develop Standard Operating Procedure for disposal of cases of deputation in Federal Government Departments under Wedlock Policy

The following Standard Operating Procedure shall be observed for disposal of cases of deputation under Wedlock Policy:- (i) In terms of the deputation policy of the Federal Government issued vide O.M. No. 1/28/75-D-II/R4 dated 11.04.2000, the Secretaries of the administrative Ministries/Divisions and Heads of Attached Departments and Subordinate Offices not below BPS-21 have been delegated powers to approve initial deputation of officers up to BS 19 belonging to cadres and posts under the administrative control for a period of three years under standard terms and conditions of deputation. The deputation policy is also applicable to the cases under Wedlock Policy as well. In terms of rule 6 of the Civil Servants (Appointment, Promotion & Transfer) Rules, 1973, the Authority to approve the appointment on deputation of officers in BS-20 & above is the Prime Minister. After the lapse of initial three years deputation the case for further extension shall be referred to Establishment Division within sixty (60) days before completion of initial period of three years. The case for extension under Wedlock Policy complete in all respect alongwith following documents should be forwarded to Establishment Division for its concurrence.

Signed application of the applicant Prescribed proforma duly filled in from lending and borrowing organizations with signatures and official stamps in original; Copy of approval of initial period of three years deputation; NOC from the parent department. Status of the incumbent beyond the initial/approved period of deputation i.e. three years; in case where the above mentioned requirements are not fulfilled or parent department of the deputationist is not agreed to issue NOC for further extension of deputation under Wedlock Policy on following grounds the incumbent shall be repatriated to the parent department: services of incumbent are required in the parent department on account of exigencies of services; the department concerned cannot fill the post on regular basis on account of deputation of its incumbent; no appointment on deputation basis shall be allowed against a short term vacancy; in the event of repatriation and joining of deputationist to the parent department the services of a person so appointed against the deputation vacancy is likely to be terminated; in case where the borrowing Ministry/Division/Department is of the consideration that the services of a deputationist are worth retaining in the organization, it may forward the case for extension in deputation under Wedlock Policy well in time so that the process could be completed before the expiry of deputation period. No ex-post facto approval shall be granted in belated cases for extension in deputation period. In case where the deputation of a government servant is under normal terms and conditions and during such period his case is converted under Wedlock Policy such government servant shall be eligible to transforms the case under Wedlock Policy with the concurrence of lending and borrowing organizations. In case where the government servant on deputation is promoted in the parent department, it would be responsibility of such government servant to actualize promotion in accordance with the requirement of the parent department. In case of disciplinary proceedings, a government servant on deputation under wedlock policy, shall liable to be repatriated to parent department with the consent of borrowing organizations.

The cases of deputation under Wedlock Policy in respect of officers belonging to Pakistan Administrative Service and Police Service of Pakistan shall be considered in the light of Rotation Policy for these Services. All Secretaries/Additional Secretaries Incharge of Ministries/Divisions, Islamabad/Rawalpindi

II. Wedlock Policy in Punjab

1. Transfer Policy 2022 for Special Education Department

In supersession of Notification No. SO(Estt)3-4/2005, dated 9.3.2021, the Competent Authority/Chief Minister Punjab approved the Transfer Policy 2022 for Special Education Department, with immediate effect.

2. The teaching staff, allied professionals and non-teaching staff may be posted anywhere in Punjab against their cadre posts. No officer/official shall claim posting against a particular post or station as a matter of right. There shall be post specific merit-based criteria for every vacant post. Minimum tenure of three years shall be observed. The request for the transfer of a teacher and allied professional shall be entertained during summer and winter vacations each year through e-portal. No transfer shall be made except against the vacant post.

3. The post-specific criteria for posting / transfer is as follows:

Sr. No. Category Marks

- i. Service in far-flung area 30 marks
- ii. Wedlock 20 marks
- iii. Compassionate grounds 20 marks
- iv. Disability 30 marks

ii) Wedlock (Maximum Marks = 20)

a. All claims for transfer on wedlock basis, when both husband and wife are Government servants, shall be subject to availability of the post; production of Nikah Nama; and certificate issued by the respective department.

b. The applicant shall be eligible to get 20 marks if he/ she applies for transfer on wedlock basis.

c. No marks for wedlock shall be awarded if both husband and wife are placed within same district.

Note II: All claims including wedlock, compassionate grounds, disability and others are subject to availability of vacancy and cannot be claimed as a matter of right.

2. Wedlock Policy Implementation Directives

“No. SO (COORD) 6-10/87
Government of the Punjab Services,
General Administration & Information
Department Dated Lahore the 15th June, 1988

- 1. The Senior Member, BOR, Punjab, Lahore.
- 2. All Administrative Secretaries to Govt. of Punjab.
- 3. The Inspector General of Police, Punjab.

4. All Heads of Attached Departments in the Punjab.
5. All Commissioners of Divisions in the Punjab.
6. All Deputy Commissioners in the Punjab.
7. The Registrar, Lahore High Court, Lahore.

SUBJECT: CHIEF MINISTER'S DIRECTIVE REGARDING POSTING OF HUSBAND AND WIFE IN GOVERNMENT SERVICE AT ONE STATION.

Sir,

I am directed to state that the Chief Minister, Punjab has been pleased to observe that in certain cases it has been notice that husband and wife in Government Service has been posted to different stations of duty. This not only creates psychological and economical strains for the concerned families, besides being responsible for related social problems, but is also not conducive to required standards of efficiency and concentration. He has, accordingly directed that immediate steps be taken to bring together such spouses by transferring them to one station of duty.

2. I am to request that the directive of the Chief Minister, Punjab may kindly be complied with and a compliance report sent to this Department by 25.6.1988, repeat by 25.6.1988 positively, for information of the Chief Minister, Punjab.

Your Obedient Servant
(Ch. Saeed Ahmad)
Under Secretary (SVII/ Coord)

7. If a husband in a Government Department is posted at one city and his wife posted in another Government Department is working in a different city, it is definitely going to cause mental distress to both of them and due to lack of concentration, the working performance and efficiency is also disturbed. Yet again, being optimistic and passionate, a Bill No.32 of 2023 was presented in the National Assembly by a lady MNA for enacting "The Protection of Family Life and Wedlock Act" to ensure protection of family and full participation of women in national life. The *inter alia* objectives of the aforesaid Bill was to ensure in letter and spirit the clause (3) of Article 25 of the Constitution guarantees for social and economic rights and social justice for protection of women, family life and children whereas Article 34 of the Constitution emphasized full participation of women in national life while Article 35 safeguards protection of family

which is not possible unless a conducive working environment is provided to spouses during their economic struggle and better of social life by their participation in national life. Due to their employment or residential problems, they are coerced to reside separately in different cities which is not only economically unfeasible but also creates hardships in growth of children and their educational opportunities. The Bill further expressed that there is a Wedlock Policy of the Federal Government ensuring transfer and posting of spouses at the same station during their postings in employments but the same is depriving them from their professional and career progression and growth under the threat of repatriation to the parent departments due to constraints of posting or transfer on deputation basis although it is a distinct situation when the other spouse is employed in or is a resident of the Islamabad Capital Territory.

8. The Federal Government Wedlock Policy disseminated through different OMs depict in general certain riders for allowing benefit of wedlock policy i.e. the request may be accepted subject to availability of a post in the same BPS; if the request involves temporary deputation to another department, it may be accepted on the prescribed terms of deputation subject to availability of a post; in case of permanent transfer/absorption in another department, the request may be processed subject to the condition that seniority shall be determined in accordance with Rule 4 of the Civil Servants (Seniority) Rules, 1993; if there is a tie between two or more Government servants for posting at the same station in the same department/unit of an organization, the Government servant with greater length of service may be preferred; the posting of husband and wife at the same station should not be made by dislocation of any Government servant already serving

at a particular station unless his transfer is necessitated by compelling reasons of public interest. So far as the unmarried female Government servant is concerned, the request may be accepted subject to availability of a post in the same BPS. If a request involves temporary deputation to another department, it may be processed in consultation with the concerned department, and may be accepted on the prescribed terms of deputation subject to availability of a post in the same BPS. It is further articulated in the aforesaid policy documents that request for posting by a spouse facing serious medical problems may be accorded highest priority; spouses already posted at one station, including those posted on deputation beyond the prescribed maximum period, may normally not be disturbed without compelling reasons of public interest. If we look at the Punjab Wedlock Policy, it is not subject to any preconditions or exigencies except that husband and wife in Government Service have been posted to different stations of duty creates psychological and economical strains for the concerned families. In fact, CM Punjab directed to take immediate steps to bring together such spouses by transferring them to one station of duty. However, although the Transfer Policy 2022 was meant for Special Education Department, it is provided that all claims for transfer on wedlock basis, when both husband and wife are Government servants, shall be subject to availability of the post; production of Nikah Nama; and certificate issued by the respective department; the applicant shall be eligible to get 20 marks if he/she applies for transfer on wedlock basis and all claims including wedlock, compassionate grounds, disability and others are subject to availability of vacancy and cannot be claimed as a matter of right.

9. We feel no hesitation in our mind to hold that once the

competent authority issued a wedlock policy, it is their responsibility to implement and adhere to such policy guidelines so that the benefit may be given to all such persons who are covered under the wedlock policy. Its implementation cannot be left in vacuum or at the sole whims and discretion of the competent authority to bestow this benefit or advantage on a pick and choose basis, on the contrary, such policies should have been implemented across the board without any remonstrations and discrimination. The fundamental and inherent structuring of the Wedlock Policy is indeed deep-seated and imbedded on the edicts of Article 35 of the Constitution which calls for the state to protect marriage, the family, the mother, and the child. To retain married couples in the government service together at one and the same station circumvents the involuntary severance of spouses due to different work locations. The policy idiosyncratically concentrates the hardships and miseries that stand in front of working ladies in maintaining the children alone while performing their professional duties far away from the place of posting of spouse.

10. Without a doubt, the employee has no vested right to claim any particular post or transfer to any specific station or post but sanguine to the wedlock policy, he or she has the legitimate expectation to be considered to work at the same station unless there is some compelling reasons in the public interest to deny their request. Here the petitioner is not claiming any vested right against any particular post, quite the reverse, she only wants the implementation of wedlock policy in her case which was refused, but then again, the refusal must be on some concrete and tangible grounds rather than mere mischief of departmental authority by abusing, misusing, or overreaching the powers to circumvent or outmaneuver the mandate of law and policy with the aim to

cause distress and mental agony to an employee who has entreated his or her transfer on the dictates of wedlock policy which is a beneficial scheme to remedy the marital inconveniences and protecting sanctity of home and family.

11. Albeit, the present controversy is confined to the implementation of wedlock policy issued under the directives of the CM Punjab whereby considering the impact of psychological and economical strains, it was found conducive to bring together such spouses by transferring them to one station of duty immediately. Neither it was pleaded before us by the learned Additional Advocate General, Punjab that the above directives or circular of the CM was time bound or presently not in vogue nor any other logical reason was placed as to why the clear directives of CM were sidestepped while rejecting the transfer application of the petitioner. Under the Constitution, the CM is the elected head of a provincial government and the chief executive of the province, who oversees and administers all provincial departments for implementing all government policies in letter and spirit. All policy decisions at the provincial level are driven by the CM, therefore, the directions of CM to ensure proper implementation of wedlock policy is binding on all administrative heads, provincial departments and civil servants of the province of Punjab.

12. The record reflects that the petitioner first time applied to the Senior Member, Board of Revenue, Punjab, Lahore for her transfer on 12.02.2019, wherein she articulated that she was selected through Punjab Public Service Commission on 23.02.2016 and appointed as Assistant (BS-16) in Board of Revenue, Punjab, Lahore. She was married in June, 2017 to Abdul Qadir Jillani who is working as Junior Clerk (BS-11) in Commissioner Office, Faisalabad Division, Faisalabad for the

last 09 years on permanent basis. She further averred that on birth of her son, she is facing difficulties due to posting of spouse at different stations (Faisalabad and Lahore) and lack of close watch and ward by parents, the baby remains upset and ill due to which spouses are severely disturbed. Since no response was received to her on application, she sent reminders on 14.02.2020 and 21.07.2020. After a long time, pursuant to the directions issued by the Lahore High Court by means of an Order dated 05.11.2020, petitioner's application was rejected by Senior Member Board of Revenue, Punjab vide order 03.03.2021. However, while rejecting application for transfer, the Senior Member Board of Revenue overwhelmingly banked on Rule 11 of the Punjab Civil Servants (Appointment & Conditions of Service) Rules, 1974, wherein it is provided that appointment by transfer may be made if transfer is prescribed in the relevant service rules as a method of appointment to such post; from one functional unit to another functional unit if the person holds an appointment on regular basis in the same basic scale and rank as that of the post to which appointment by transfer is proposed to be made, provided he possesses the qualifications prescribed for initial recruitment to such posts. In support of rejection order, it was further observed that perusal of the wedlock policy reveals that transfer can only be acceded to if service rules of the department proffer the option of appointment by transfer and in the instant case the Punjab Revenue Department (District Cadre) Ministerial Service 2011 and the Punjab Revenue Department (Commissioner's Office) Ministerial Service Rules, 2011 do not provide the provision of appointment by transfer. Last but not least, it was held that the Policy has no overriding effect over relevant service rules and no such order can be passed which is contrary to the existing service rules of the separate functional units. More or less, the findings of the PST

are identical while affirming the rejection order of transfer application moved by the petitioner.

13. Although this policy is based on humanitarian and compassionate grounds but once it is disseminated, it is also protected by virtue of Section 23 of the Punjab Civil Servants Act 1974, which provides that the Governor, or any person authorized on this behalf may make such rules as appear to him to be necessary or expedient for carrying out the purposes of this Act. Sub-section (2) exemplifies that any rules, orders or instructions in respect of any terms and conditions of service of civil servants duly made or issued by an authority competent to make them and in force immediately before the commencement of this Act shall, in so far as such rules, orders or instructions are not inconsistent with the provisions of this Act, be deemed to be rules made under this Act. In our view, the policy under discussion apparently neither violates any statutory provision or rules nor the rules quoted by the Senior Member Board of Revenue overrides the Wedlock Policy impliedly or expressly, rather it is premeditated beneficial, remedial and advantageous to a specific genre under specific circumstances.

14. Under the Punjab Revenue Department (Commissioner's Office) Ministerial Service Rules, 2011, the method of recruitment, minimum qualification, age limit and other matters incidental thereto for the posts are provided in the Schedule annexed with the rules which demonstrates the mode of recruitment of Assistant in Revenue Department can be made 33% by initial recruitment, and 67% by promotion on the basis of seniority-cum-fitness from amongst members of the service in the Division where the vacancy occurs holding the posts of senior clerks with at least three years' service as such; or by transfer. This rule itself does not create any embargo or

restrictions on the permanent transfer or transfer through deputation of any wedded lady to the place of posting of her husband.

15. The interpretation of beneficial rules, circular and policy follows the doctrine of beneficial construction with the sole aim and ambition that when a law or rule is intended to provide a benefit to a specific class, it should be interpreted liberally to achieve or live up to its intended manifestation without any overriding effect. The policy creates a legitimate expectation for married civil servants that they will be accommodated rather than arbitrary detour of policy without any rhyme or reason. Ambiguity, if any, should be resolved in the best interest of the intended beneficiaries. The doctrine of overriding effect is a legal precept and periphery which delineates the powers under any law or provision to supersede or outweigh other conflicting laws, rules or instruments to achieve some underlying principle. It is in fact a tool to ensure legal certitude by expounding which law or rules will take the lead in precedence when multiple laws are in conflict or at odds. So far as the construal and enforcement of beneficial law, circular/notification is concerned, the Courts are under a constitutional and legal obligation to espouse a purposive and even-handed interpretation for beneficial statutes, notifications and policies to safeguard the rights and genuine likelihood of the subject. Any ifs and buts in proper implementation will seriously frustrate the intended purpose and theme of wedlock policy which in our considered view neither directly or indirectly offends nor transgresses the relevant provisions of transfer and posting assimilated in the Federal and Provincial Civil Servants Acts nor the Federal and Provincial Civil Servants Appointment, Promotion and Transfer Rules respectively. Even in case of non-availability of post at the place of posting of spouse applied for transfer for any

reason, the meaningful efforts should be made to execute the policy in pith and substance to accommodate the married couple at the same place of posting by all means, no matter what is the mode, either it is temporary transfer for certain period or permanent transfer or absorption in the same department at the place of posting of spouse or some other department or posting on deputation in the same department or any other Federal Government or Provincial Government Department to honour the wedlock policy rather than exasperating or strangulating it on irrational pretexts without making sincere efforts or rejecting application on the lame excuses that the post is not available.

16. In view of the above, this petition is converted into an appeal and allowed. As a consequence thereof, the impugned judgment of PST and the Order passed by Senior Member Board of Revenue, Punjab dated 03.03.2021 are both set aside. As a consequence, the Senior Member, Board of Revenue, Punjab, Lahore is directed to decide transfer application of the petitioner afresh within a period of 15 days taking into account the Office Memorandum dated 15.06.1988, issued by the Services, General, Administration and Information Department, Government of Punjab pursuant to the directions of CM Punjab and communicate the order to the petitioner.

Judge

Islamabad
12th of Feb., 2026
Khalid
Approved for reporting

Judge

Office is directed to transmit the copy of this judgment to Chief Minister, Chief Secretary and Advocate General Punjab.